

CLEAR

PRINT

Initial Report or Claim

FOR OFFICE USE ONLY

Taken by:

Case#:

Date filed:

IS THIS CLAIM RELATED TO YOUR EMPLOYER'S WRONGFUL CLASSIFICATION OF YOU AS AN INDEPENDENT CONTRACTOR INSTEAD OF AN EMPLOYEE? ☐ YES ☐ NO

PRELIMINARY QUESTIONS

1. Is your claim about a **public works** project? If your answer is "YES," STOP HERE. DO NOT FILL OUT THIS FORM. Fill out the "PW-1" claim form instead. If your answer is "NO," proceed with this form.

2. Have you filed a **retaliation complaint** against your employer with the Labor Commissioner?

☐ YES, on: / /
Month Day Year

☐ NO If you have been retaliated against, you may file a retaliation complaint by filling out another form, "RCI 1 Form"

3. Is there a **Union contract** covering your employment?

☐ YES If "YES," attach a copy of the Union contract / Collective Bargaining Agreement.
☐ NO

4. Are other employees also filing wage claims against your employer? ☐ YES ☐ NO ☐ I DON'T KNOW

Part 1: LANGUAGE ASSISTANCE & REPRESENTATION

5. Do you need an interpreter?

☐ YES ☐ NO

5a. If you checked "YES" to Box 5, enter the language needed

6. If you are being assisted with your claim by a lawyer or other advocate, enter your ADVOCATE'S NAME and ORGANIZATION

6a. ADVOCATE'S PHONE

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6b. Your ADVOCATE'S MAILING ADDRESS (Number, Street, Floor, Suite)

CITY

STATE

ZIP CODE

Part 2: YOUR INFORMATION

7. Your FIRST NAME

8. Your LAST NAME

9. HOME PHONE

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10. CELLPHONE

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11. BIRTH DATE

12. Your EMAIL ADDRESS

13. Alternate Contact - Name & Relationship

13a. Alternate Contact
Phone Number

13b: Email of Alt. Contact:

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14. Your MAILING ADDRESS (Street Number, Street Name, Apartment Number)

CITY

STATE

ZIP CODE

Part 3: CLAIM FILED AGAINST (EMPLOYER INFORMATION)

15. EMPLOYER / BUSINESS NAME(S)

16. EMPLOYER'S VEHICLE LICENSE
PLATE #

17. EMPLOYER PHONE

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18. EMPLOYER'S EMAIL ADDRESS

19. ADDRESS of EMPLOYER / BUSINESS (Street Number, Street Name, Floor, Suite)

CITY

STATE

ZIP CODE

20. ADDRESS where you worked, if different from Box 19 (Number, Street, Floor, Suite)

CITY

STATE

ZIP CODE

21. NAME of PERSON IN CHARGE (First Name, Last Name)

21a. JOB TITLE / POSITION of PERSON IN CHARGE

22. Type of business

23. Type of work you performed

24. Total # of employees

25. EMPLOYER STILL IN BUSINESS?

☐ YES ☐ NO ☐ I DON'T KNOW

26. Check the box that describes
your employer, if you know:

☐ CORPORATION ☐ INDIVIDUAL ☐ PARTNERSHIP ☐ LLC / LLP ☐ I DON'T KNOW

PRINT YOUR NAME: _____

Part 4: FINAL WAGES / BOUNCED CHECKS

27. DATE OF HIRE Month Day Year	28. Check which box applies to you: ☐ Still working for employer ☐ QUIT on Month Day Year ☐ DISCHARGED on Month Day Year Other (specify): _____
28a. If you QUIT, did you give at least 72-hours' notice? ☐ YES ☐ NO	28b. If you QUIT, have you received your final payment of wages including all wages owed? ☐ YES, on: Month Day Year ☐ NO
28c. If you were DISCHARGED, have you received your final payment of wages including all wages owed? ☐ YES, on: Month Day Year ☐ NO	
29. How were your wages paid? ☐ BY CHECK ☐ BY CASH ☐ BY BOTH CASH & CHECK ☐ OTHER: _____	29a. If paid by check, did any of your pay checks "bounce"? For example, a paycheck could not be cashed because your employer had insufficient funds. ☐ YES ☐ NO

Part 5: HOURS YOU TYPICALLY WORKED

30. Check which box applies:
☐ My work hours and days of work were usually the same each week that I worked.

☐ My work hours and/or days of work varied per week or were irregular. **If you checked this box and you are claiming unpaid wages or meal and rest period violations, you should also fill out and submit the DLSE FORM 55.**

31. If your work hours and days of work were usually the same each week, give your BEST ESTIMATE below of the hours you usually worked and any time you took for a duty-free meal period during your TYPICAL workweek. DO NOT fill this out if your work hours were too irregular to estimate a typical or average workweek (instead fill out the DLSE Form 55).

	TIME WORK STARTED	TIME WORK ENDED	1st MEAL START TIME (if applicable)	1st MEAL END TIME (if applicable)	2nd MEAL START TIME (if applicable)	2nd MEAL END TIME (if applicable)	ONLY IF YOU WORKED A SPLIT SHIFT:		
DAY 1 of your workweek:	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	1st shift ended at ☐ am ☐ pm	2nd shift started at ☐ am ☐ pm
DAY 2 of your workweek:	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	1st shift ended at ☐ am ☐ pm	2nd shift started at ☐ am ☐ pm
DAY 3 of your workweek:	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	1st shift ended at ☐ am ☐ pm	2nd shift started at ☐ am ☐ pm
DAY 4 of your workweek:	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	1st shift ended at ☐ am ☐ pm	2nd shift started at ☐ am ☐ pm
DAY 5 of your workweek:	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	1st shift ended at ☐ am ☐ pm	2nd shift started at ☐ am ☐ pm
DAY 6 of your workweek:	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	1st shift ended at ☐ am ☐ pm	2nd shift started at ☐ am ☐ pm
DAY 7 of your workweek:	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	☐ am ☐ pm	1st shift ended at ☐ am ☐ pm	2nd shift started at ☐ am ☐ pm

Part 6: PAYMENT OF WAGES

32. Were you paid or promised a **FIXED** amount in wages per pay period, no matter how many hours you worked (for example, \$400 per week, regardless of how many hours you worked)? YES ☐ NO ☐

I was paid \$_____ per ☐ day ☐ week ☐ every 2 weeks ☐ month ☐ semi-monthly

I was promised \$_____ per ☐ day ☐ week ☐ every 2 weeks ☐ month ☐ semi-monthly

33a. Were you an **HOURLY** employee? YES ☐ NO ☐

I was paid \$_____ per hour.

I was promised \$_____ per hour.

33b. If you were an **HOURLY** employee, were you paid or promised **more than one hourly rate** (based on the hours you worked or different job tasks)? ☐ YES ☐ NO

If YES, please specify: _____

34. Were you paid by **PIECE RATE**? ☐ YES ☐ NO

35. Were you paid by **COMMISSION**? ☐ YES ☐ NO

Part 7: WAGES, COMPENSATION & PENALTIES OWED

36. CLAIMS (Check all boxes below that apply)	CLAIM PERIOD: START DATE (Month/ Day/ Year)	CLAIM PERIOD: END DATE (Month/ Day/ Year)	AMOUNT EARNED / CLAIMED
☐ REGULAR WAGES (for non-overtime hours)			\$
☐ OVERTIME WAGES (including double time)			\$
☐ MEAL PERIOD WAGES			\$
☐ REST PERIOD WAGES			\$
☐ SPLIT SHIFT PREMIUM			\$
☐ REPORTING TIME PAY			\$
☐ COMMISSIONS ***			\$
☐ VACATION WAGES ***			\$
☐ BUSINESS EXPENSES			\$
☐ UNLAWFUL DEDUCTIONS			\$
☐ PAID SICK LEAVE			\$
☐ PAID SICK LEAVE Supplemental Paid Sick Leave			\$
☐ OTHER [provide separate explanation]			\$
ENTER SUBTOTAL (add all Amounts Earned/Claimed):			\$
ENTER TOTAL AMOUNT PAID:			\$
GRAND TOTAL OWED [Subtotal minus Total Amount Paid]:			\$

37. Check box(es) if you are claiming:

☐ Waiting time penalties [Labor Code §203]

☐ Penalties for “bounced” checks (checks issued with insufficient funds) [Labor Code §203.1]

☐ Penalties for late payment wages [Labor Code §210]

☐ Liquidated damages for late payment wages [Labor Code §1194.2]

☐ Compensatory damages for willful misclassification [Labor Code §226.8]

The amounts claimed are based on my best estimates at this time and may be adjusted based on further information or based on assistance with my claim provided by DLSE.

Signed: _____

Date: _____

Print Name: _____